

26NNCV00989 26NNCV00989

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Case Number: 26NNCV00989 Hearing Date: June 26, 2026 Dept: B

Hon. Lee

S. Arian, Dept B

MOTION TO QUASH

Hearing Date: 6/26/26

CASE NO./NAME: 26NNCV00989 JING XING FENG et al. vs. BAOLI WU et al.

Moving Party: Defendant

Baoli Wu

Responding Party: None

Notice: Sufficient

Ruling: GRANTED

Background

On February 9, 2026, plaintiffs Jing Xing Feng and Rongxiang Feng (Plaintiffs) filed this action against defendant Baoli Wu (Defendant) arising out of a motor vehicle accident that occurred on November 26, 2024. Defendant was allegedly personally served as an individual, on March 31, 2026, at 7:26 p.m., at 3035 E Oak Knoll Loop, Ontario, CA 91761-3872, through a registered process server identified as Estevan Berrellez. Defendant now moves the Court for an order quashing service of summons.

Legal Standard

“Service of process, under longstanding tradition in our system of justice, is fundamental to any procedural imposition on a named defendant.” (AO Alfa-Bank v. Yakovlev (2018) 21 Cal.App.5th 189, 202.) “To establish personal jurisdiction, compliance with statutory procedures for service of process is essential.” (Kremerman v. White (2021) 71 Cal.App.5th 358, 371.) A defendant’s knowledge of the action does not dispense with the statutory requirements for service of summons. (Kappel v. Bartlett (1988) 200 Cal.App.3d 1457, 1466.)

“A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow,” may move “to quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10(a)(1).) A defendant has 30 days after the service of the summons to file a responsive pleading. (Code Civ. Proc., § 412.20(a)(3).)

“When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process, ‘the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.’” (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.) Filing of a proof of service that complies with the applicable statutory requirements creates a rebuttable presumption of proper service. (Am. Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.)

Discussion

Defendant argues that service was improperly effectuated at 3035 E. Oak Knoll Loop, Ontario, California because Defendant does not reside at this address. (Motion, p. 1.) Defendant resides in China. (Ibid.) Defendant argues that service was effectuated at the home of Baojing Wang, Defendant’s estranged wife. (Ibid.) Defendant argues that because he has not been served the court lacks jurisdiction over him. (Motion, p. 3.)

Here, personal service was allegedly effectuated on Defendant at 3035 E. Oak Knoll Loop, Ontario, California. (Nguyen Decl., Exh. A “Proof of Service”.) However, Plaintiffs have not filed the proof of service.

Defendant’s estranged wife Baojing Wang declares that Defendant

abandoned her and moved to parts unknown in China approximately three years ago. (Wang Decl., ¶ 6.) Boajing Wang declares that she resides at 3035 E. Oak Knoll Loop and states that Defendant was not present at the residence on March 31, 2026, when he was allegedly served. (Wang Decl., ¶¶ 7-9.) Boajing Wang also declares that she was not personally served with the Summons and Complaint at any time. (Wang Decl., ¶10.)

When a defendant files a motion to quash, the burden is on the plaintiff to establish that service of the summons and complaint was proper. (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.) As Plaintiffs have failed to file an opposition to the motion, Plaintiffs have failed to meet Plaintiffs' burden. As such, Defendant's motion must be granted. Moreover, Defendant has submitted sufficient evidence to show the motion should be granted.

Accordingly, Defendant Baoli Wu's motion to quash service of summons is granted.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court's website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.

Hon. Lee S. Arian

Judge of the Superior Court